



CHAPTER cxv.

An Act to confirm a Provisional Order of the Minister of Health relating to Wallingford. [4th August 1920.] A.D. 1920.

WHEREAS the Minister of Health has made the Provisional Order set forth in the schedule hereto under the provisions of the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and the Public Health Act 1875:

33 & 34 Vict.
c. 70.
36 & 37 Vict.
c. 89.
38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. Whereas by section three of the Local Government Board's Provisional Orders Confirmation (Gas) Act 1899 it was enacted that notwithstanding anything contained in the Wallingford Gas Order 1899 thereby confirmed the Urban District Council for the Borough of Wallingford (in this section called "the Urban District Council") might supply gas within the area by that section defined notwithstanding that such area was situate outside of the limits of supply as defined by Article III. of the said Order and provision was made for the purchase with the consent of the appropriate Government Department by the local authority in whose district the said area was situate of such portion of the gasworks and plant of the Urban District Council as is contained within the district of such local authority 62 & 63 Vict.
c. cxiv.

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Order Confirmation (Gas) Act, 1920.

A.D. 1920. and it is expedient that the provisions of the said section should be extended and apply to additional areas:

Be it therefore enacted as follows:—

The provisions of section three of the said Confirmation Act shall be extended and shall apply to the areas edged pink on two plans signed by the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred in like manner as they apply to the area in the said section defined.

One of the said plans shall be deposited in the offices of the Minister of Health and the other shall be deposited in the office of the Clerk to the Urban District Council.

Short title. **3.** This Act may be cited as the Ministry of Health Provisional Order Confirmation (Gas) Act 1920.

SCHEDULE.

BOROUGH OF WALLINGFORD.

A.D. 1920.

Provisional Order under the Gas and Water Works Facilities *Wallingford*
Act 1870 and the Gas and Water Works Facilities *Order.*
Act 1870 Amendment Act 1873.

To the Mayor Aldermen and Burgesses of the Borough of
Wallingford ;—

And to all others whom it may concern.

WHEREAS the Borough of Wallingford (hereinafter referred to as
“the Borough”) is an Urban District of which the Mayor Aldermen
and Burgesses acting by the Council (hereinafter referred to as
“the Corporation”) are the Urban District Council ;

And whereas by the Wallingford Gas Order 1899 (hereinafter
referred to as “the Order of 1899”) which was confirmed by the
Local Government Board’s Provisional Orders Confirmation (Gas) Act 62 & 63 Vict.
1899 the Corporation were empowered on the lands described in the c. cxiv.
schedule to that Order to maintain repair renew and continue and
from time to time construct extend enlarge alter or when necessary
remove buildings apparatus and works for the manufacture and storage
of gas and of coke culm asphaltum pitch coal-tar oil ammoniacal
liquor and other refuse or residual products arising from the manufac-
ture of gas and any matters producible therefrom and dwellings for any
persons employed in the said works and subject to the provisions of that
Order to make gas and supply and sell the same within the Borough
for public and private purposes and to convert or manufacture coke
culm asphaltum pitch coal-tar oil ammoniacal liquor and all refuse or
residual products arising from the manufacture of gas by them and
any matters producible therefrom and to sell and dispose of the same
at the gasworks and elsewhere but by that Order the Corporation
were prohibited from acquiring any lands other than those mentioned
in the schedule to the Order and from manufacturing gas or any
residual products arising in the manufacture of gas or from storing
gas on any land other than that specified in the schedule to the
Order ;

And whereas by Article XIV. of the Order of 1899 it is provided
that the price to be charged by the Corporation for gas supplied to
consumers shall not subject as therein provided exceed five shillings
per one thousand cubic feet and so on in proportion for any less
quantity supplied ;

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A.D. 1920. And whereas the Corporation have acquired the land described in
Wallingford Part I. of the Schedule to this Order;
Order.

And whereas the Corporation require to extend their gasworks and for that purpose to be authorised and empowered to appropriate and use the last-mentioned land to purchase hold and use additional lands and to borrow further moneys and in pursuance of Section 161 of the Public Health Act 1875 and of the enactments therein mentioned have made application to the Minister of Health for a Provisional Order to amend or vary the Order of 1899 and it is expedient that that Order should be amended and varied in manner hereinafter appearing :

33 & 34 Vict. Now therefore the Minister of Health in pursuance of the powers
c. 70. given to him by the Gas and Water Works Facilities Act 1870
36 & 37 Vict. Section 12 of the Gas and Water Works Facilities Act 1870 Amend-
c. 89. ment Act 1873 and Section 161 of the Public Health Act 1875 and
38 & 39 Vict. by any other enactments in that behalf hereby orders that from and
c. 55. after the date of the Act of Parliament confirming this Order (hereinafter referred to as "the commencement of this Order") the Order of 1899 shall be amended and varied so that the following provisions shall take effect:—

• Short titles. Art. I. This Order may be cited as the Wallingford Gas Order 1920 and the Order of 1899 and this Order may be cited together as the Wallingford Gas Orders 1899 and 1920.

Further
lands for
gas purposes.

Art. II.—(1) Notwithstanding anything in the Order of 1899—

(a) The Corporation may for the purposes of their gas undertaking purchase by agreement but not otherwise the land described in Part II. of the schedule, to this Order :

(b) The Corporation may hold and use the land belonging to them and described in Part I. of the schedule to this Order and if and when the land described in Part II. of that schedule has been purchased may also hold and use that land for all or any of the purposes of the said gas undertaking including the manufacture and storage of gas and residual products as if such lands had been included in the lands described in the schedule to the Order of 1899.

(2) Nothing contained in this Order shall authorise the Corporation to manufacture or store gas or manufacture residual products arising in the manufacture of gas upon lands other than those described in the schedule to the Order of 1899 or in the schedule to this Order.

Borrowing
powers.

Art. III. The purposes of this Order (which purposes shall be deemed to include the costs payable by the Corporation of and in

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Order Confirmation (Gas) Act, 1920.

connection with the preparation making and confirmation by Parliament of this Order and any sum paid for the purchase of the lands described in the schedule hereto) shall be deemed to be purposes of the Order of 1899 for which the Corporation may borrow under and in accordance with the provisions of that Order.

A.D. 1920.
—
Wallingford
Order.

Art. IV. The Confirming Act of 1899 so far as it relates to the Order of 1899 shall be altered and have effect as if in Article XIV. of the Order of 1899 the words "six shillings per one thousand cubic feet" were inserted therein instead of the words "five shillings per one thousand cubic feet."

Increase of
maximum
price for gas.

The SCHEDULE above referred to.

PART I.

A piece of land in the parish of Wallingford in the Borough containing one rood and twenty-three poles or thereabouts bounded on or towards the east by the Great Western Railway on or towards the north by land on which the existing gasworks of the Corporation are situate and on or towards the south and west by lands belonging or reputed to belong to Alan Alfred Dodd.

PART II.

A piece of land in the parish of Wallingford in the Borough containing three acres or thereabouts bounded on or towards the east by land on which the existing gasworks of the Corporation are situate by the land described in Part I. of this schedule. and by the Great Western Railway on or towards the north and west by lands belonging or reputed to belong to the said Alan Alfred Dodd and on or towards the south by Mill Brook.

Given under the Official Seal of the Minister of Health this
Twentieth day of April One thousand nine hundred and
twenty.

(L.S.)

F. J. WILLIS
Assistant Secretary Ministry of Health.

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FOR

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